4905

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY AT PRIVATE SALE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes, approved October 6, 1917, known as the "Trading with the Enemy Act," and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes," approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919, and prior fiscal years on account of war expenses, and for other purposes," approved November 4, 1918, and Settlement of War Claims Act of 1928, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell at private sale, at such time and place as to him or to his authorized agent may seem advisable, without public or other advertisement, for and in consideration of the sum of Six Hundred fifty thousand ($650,000) Dollars, certain real estate delivered to him as the property of Caroline Countess zur Lippe, Emily Goler von Ravenburg, Kurt von Bohlen Halbach, Alwyn von Bohlen Halbach, Fritz von Bohlen Halbach, Harry von Bohlen Halbach, Gustav von Bohlen Halbach and (Caroline) Lilly von Winterfeldt, residing in Germany, whom after investigation, he did determine to be enemies within the purview of the said Act as amended, which said real estate is situate in the Township of Hanover, County of Luzerne, State of Pennsylvania, and described as follows, to-wit:

> Beginning at a point in the Back Road, now Main Street, Sugar Notch, said point being also a corner in the line between Lots numbered Thirteen and Fourteen, Third Division, certified Hanover Township; thence South fifty-eight degrees forty-four minutes West, one hundred thirty-six and seventy-five one-hundredths feet along said Back Road to a corner in Lot numbered thirteen, Third Division; thence North thirty degrees twenty-five minutes West, eight hundred five and seventy-five one-hundredths feet to a corner; thence North sixty degrees twenty-seven minutes East, twenty-four hundred twenty-nine and fifty-eight one-hundredths feet along the line between Lot numbered thirteen, Second Division, and Lots numbered Thirteen and Fourteen, Third Division, to a corner; thence South forty-six degrees forty and one-half minutes East, twenty-seven hundred sixty-five and twelve one-hundredths feet along the line between Lot numbered fourteen, Third Division, and Lots numbered thirty and thirty-one, First Division, to a corner; thence South seventy-three degrees thirty-two and one-half minutes West, thirty-four hundred twelve and sixty one-hundredths feet along the line between lots numbered Fourteen and Fifteen, Third Division, to a corner; thence North seventeen degrees twenty-seven minutes West, ten hundred ninety-two and twenty-five one-hundredths feet along the line between Lots numbered thirteen and fourteen, Third Division, to the place of beginning. Containing one hundred forty-three and six one-hundredths acres, and being Lot numbered Fourteen and part of Lot numbered Thirteen, Third Division, Certified Hanover Township.

Pennsylvania

BEING the same premises which Ernst Graf zur Lippe, et al, by indenture dated January 26, 1899, recorded in the office for the recording of deeds, etc., in and for the County of Luzerne, in the State of Pennsylvania, in Deed Book No. 382, Page 339, demised, leased and to mine let unto the said Lehigh and Wilkes-Barre Coal Company, all the merchantable coal in the several veins or seams of coal in, under and upon the land hereinbefore described, for the term or period of twenty-five years from the 1st day of October, A. D. 1899, which said lease has been extended and kept in force until the present.

My reasons for the foregoing determination, order, rule and regulation are:

(a) An advantageous offer for the purchase of the said real estate has been received by the Alien Property Custodian:

(b) The written consent of the persons entitled thereto, as provided in the Settlement of War Claims Act of 1928, is on file with this office:

(c) The purchasers have been operating the property under lease for a period of approximately thirty-five years.

(d) The income from the proceeds when deposited in the Treasury would be greater than the net income from the royalties of the property operated under lease.

CALVIN COOLIDGE

THE WHITE HOUSE,
June 6, 1928.

[No. 4905]

U. S. GOVERNMENT PRINTING OFFICE: 1928